



Department for
Science, Innovation
& Technology

Department for Science, Innovation and Technology
22 to 26 Whitehall, London
SW1A 2AU

FOI-requests@dsit.gov.uk

www.gov.uk/dsit

Our reference:

FOI2026/01077

22 April 2026

Our response to your freedom of information request

Your request

On 23 March 2026, you asked us to provide the following information:

Under the Freedom of Information Act 2000, I am requesting information regarding the Department's assessment of the necessity and proportionality of measures introduced by the Online Safety Act 2023 (OSA), specifically in relation to the under-enforcement of existing Data Protection (UK GDPR) and Consumer Protection laws.

As the European Convention on Human Rights (ECHR) requires that any state interference with privacy (Article 8) must be the "least intrusive means" necessary to achieve a legitimate aim, please provide the following:

1. Enforcement Gap Analysis (Legal Basis & Article 7): Any internal briefings or correspondence from 2021 to the present discussing whether the harms targeted by the OSA (e.g., algorithmic "rabbit-holing") are enabled by systemic violations of UK GDPR Article 7 (Conditions for Consent) and Article 6 (Lawfulness). Specifically, any analysis of platforms "bundling" consent or misusing "Legitimate Interest" for high-risk profiling of children.
2. Assessment of Alternative Remedies: Evidence of any "Necessity Test" conducted by the Department to determine why the Information Commissioner's Office (ICO) exercising its existing powers (under Articles 58 and 83) to audit or fine platforms for illegal profiling was deemed an insufficient alternative to the more intrusive measures mandated in the OSA.
3. Technical Feasibility and the "Discord Leak": Any internal assessments regarding the spoofability of digital ID/Age Verification (AV) and the expected failure rates of these technologies. Please include any Departmental analysis or correspondence regarding the October 2025 Discord data leak, specifically addressing how mandatory ID retention for "Safety" purposes creates a disproportionate risk of GDPR Storage Limitation (Article 5(1)(e)) violations.
4. Impact of the Data Use and Access Act 2025: Any internal analysis regarding how the changes to GDPR Article 22 (Automated Decision Making) in the 2025 Act were

intended to mitigate the legal risk of "non-computable" error rates in the automated filtering tools required by the OSA.

5. Equality and Discrimination: Any reports or briefings addressing how mandatory age assurance may result in indirect discrimination (under the Equality Act 2010) against protected groups due to algorithmic bias or lack of access to traditional identity documents.

Public Interest Statement:

Should the Department consider applying a qualified exemption, such as Section 35 (Formulation of Government Policy), I wish to highlight the following public interest factors that favour disclosure:

- Accountability for Legislative Necessity: There is a significant public interest in understanding whether the Department verified the "necessity" of the OSA as required by the Human Rights Act, particularly if existing GDPR enforcement was a viable alternative.
- Transparency of Technical Efficacy: Given the high risk of data breaches and the "non-computable" nature of age verification, the public has a right to know if the Department is mandating technology it knows to be spoofable or prone to failure.
- Prevention of Discrimination: Transparency is required to ensure that safety measures do not result in indirect discrimination against protected groups.

We have responded to your request for recorded information under the Freedom of Information Act 2000 (FOIA).

Our response

Conducting the searches necessary to confirm if we hold the information you have asked for would exceed the cost limit set out by section 12 of the Freedom of Information Act 2000 (FOIA).

Section 12: The scope of your request exceeds the cost limit under the FOIA

The Freedom of Information and Data Protection (Appropriate Limit and Fees) Regulations 2004 states that the 'appropriate limit' for the Department for Science, Innovation and Technology is £600 which would equate to 24 hours work.

We have assessed that finding, retrieving and/or extracting the information within scope of your request would exceed 24 hours of work which would accrue a charge of £600 or more, triggering the provisions of section 12 of the FOIA.

Your request seeks internal briefings, analyses and correspondence covering multiple strands of Online Safety Act policy over an extended period. The Department for Science, Innovation and Technology (DSIT) was established in February 2023. Since that time, any information that may fall within scope would be held across multiple storage locations, including shared document repositories and individual email accounts.

To determine whether information is held and, if so, to locate and retrieve it, extensive searches would be required across these different storage locations. Given the breadth of the issues covered and the volume of potential material, we have assessed that the time required to identify, retrieve and extract information falling within scope would exceed 24 hours of work. This would exceed the appropriate limit of £600, as set out in the Freedom of Information and Data Protection (Appropriate Limit and Fees) Regulations 2004. We are therefore refusing your request under section 12(2) of the Act.

Advice and assistance

To help you refine your request so that it may be brought within the statutory cost limit.

You may wish to consider:

- **Restricting the scope of the request to specific types of records**, rather than all recorded information held across different storage locations.
- **Limiting the date range**, for example by focusing only on records created after DSIT was established in February 2023 and narrowing this further to a shorter, clearly defined period.
- **Clarifying what is meant by “correspondence”**, such as limiting this to formal briefings, submissions or a defined category of email communications, rather than all internal communications more broadly.

We would need to consider if it is in the public interest for us to dedicate the resources necessary to carry out this kind of search, or whether it represents an unreasonable burden on us as a public authority.

Next steps

You can ask us to review our response. You can ask us to review our response by sending an email to foi-requests@dsit.gov.uk.

Please remember to quote the reference number above in any future communications.

If we perform a review but you are still dissatisfied, you can complain to the [Information Commissioners Office](#) (ICO).

You should make complaints to the ICO within six weeks of receiving the outcome of an internal review through the ICO website: www.ico.org.uk/foicomplaints.

Your information

Our [privacy notice](#) explains what we do with the personal information which you provide to us. Our [personal information charter](#) sets out the standards you can expect from the Department for Science, Innovation and Technology when we collect, hold or use your personal information.

Yours sincerely,

Department for Science, Innovation and Technology